

11th Legislature



Tribal Law 11-001

To establish the rules and regulations relating to impeachment, impeachable charges and procedures for impeachment of elected officials of the Chickasaw Nation, and for other purposes.

IN THE CHICKASAW TRIBAL LEGISLATURE

October, 1993

AN ACT

Be it enacted by the Chickasaw Tribal Legislature assembled, that this Act shall be cited as the "Chickasaw Nation Impeachment Act of 1994."

SEC. 2. The Chickasaw Tribal Legislature finds that:

(a) A need exists to provide a system for determining impeachable causes in relation to all elected officials of the Chickasaw Nation;

(b) a need exists for the establishment of a system of rules and regulations to be applied in effecting impeachment of an elected official of the Chickasaw Nation.

SEC. 3. The basis for authority of this Act is Article VI, Section 1, Article VII, Section 4 and Article XVI, Section 1 of the Constitution of the Chickasaw Nation. The Chickasaw Tribal Legislature, with the adoption of this Act, hereby:

(a) repeals all previous resolutions and laws which pertain to impeachment of elected officials of the government of the Chickasaw Nation.

SEC. 4. For the purpose of this Act:

(a) "The Chickasaw Nation" shall mean the government instituted in the Constitution of the Chickasaw Nation, or all Chickasaw Indians by blood whose names appear on the final rolls of the Chickasaw Nation approved pursuant to Section 2 of the Act of April 26, 1906, and their lineal descendants, or it shall mean the actual physical nation itself, depending upon reference;

(b) "Chickasaw Tribal Legislature," or "legislature," shall mean that body of not more than 13 members, as created by Articles V, VI, VII, VIII and IX of the Constitution of the Chickasaw Nation;

(c) "Governor" shall mean the chief executive officer of the Chickasaw Nation, as created by Articles X and XI of the Constitution;

(d) "Lieutenant governor" or "lt. governor" shall mean that officer as defined in Articles X and XI of the Constitution;

(e) "Executive Department" shall mean that department of the tribal government created by the Constitution and/or referenced in Articles V, X and XI.

(f) "Legislator" or "member of the legislature" shall mean those persons serving in the Legislative Department as provided in Article VI of the Constitution;

(g) "Judge" shall mean that person or persons serving in the Judicial Department as provided in Articles XII and XIII of the Constitution;

(h) "Judicial Department" shall mean that department created in Articles XII and XIII of the Constitution;

(i) "Constitution" means that document which formally established the Chickasaw Nation and its government, as ratified by the eligible registered voters of the Chickasaw Nation on August 27, 1983, and which was approved by the secretary of the U.S. Department of the Interior on July 15, 1983;

(j) "Elected official" shall mean any person who serves the Chickasaw Nation in any capacity whatsoever and who has been elected by the registered voters of the Chickasaw Nation to complete and fulfill the obligations of the office to which he was elected;

(k) "Official capacity" or "official duties" shall mean duties, activities, actions or procedures done in compliance with either constitutional, lawful, legal or other requirements of the person who is in an elected office and which duties, activities, actions or procedures are done while an elected official is representing the Chickasaw Nation or other office to which he was elected;

(l) "Registered resident voter" shall mean any person who resides within the geographical boundaries of the Chickasaw Nation, and who is registered to vote with the Chickasaw Nation Election Commission in good standing;

(m) "Witness" shall mean an individual person who appears before the legislature during an impeachment hearing;

(n) "Prosecutor" shall mean that citizen of the Chickasaw Nation, not an elected official of the Chickasaw Nation and not employed by the Chickasaw Nation in any capacity whatsoever, and not related by blood or marriage to within three degrees to the elected official against whom articles of impeachment have been filed;

(o) "Petition" shall mean that document submitted to the Judicial Department, which states the cause of action for impeachment as utilized in this Act;

(p) "Articles of impeachment" shall mean the formal impeachment charges filed by the Judicial Department;

(q) "Subpoena" shall mean a command for appearance before the

legislature when it sits as a court for impeachment hearings. The function of a subpoena is to compel the attendance of a witness and the production of documents so the legislature may have all available information for the determination of controversies before it. Subpoenas are of two types. A subpoena ad testificandum compels the attendance of a witness; a subpoena duces tecum calls for the production of documents and things. Both may be taken either for a deposition or for the actual hearing itself;

(r) "Legislative district(s)" shall mean those four areas, as defined in Article VI, Section 3 of the Constitution;

(s) "Chairperson" shall mean that officer of the Chickasaw Tribal Legislature as identified at Article VII, Section 1 of the Constitution;

(t) "Secretary" shall mean that officer of the Chickasaw Tribal Legislature as identified at Article VII, Section 1 of the Constitution.

SEC. 5. (a) Any person who is a registered resident voter of the Chickasaw Nation in good standing with the Chickasaw Nation Election Commission, shall be entitled to draft, circulate and/or sign a petition seeking the impeachment of any elected official, provided that that citizen meets the full requirements as contained in this Act.

(b) A petition seeking the impeachment of an elected official shall consist of two sheets of paper, being 8.5 inches wide by 14 inches long and white in color.

(1) The first sheet shall bear, centered across the top of the page, in bold print in upper case letters no less than 18 points in size, the word *WARNING*, followed by this language, also in bold print, no less than 14 points in size: *It is a felony for anyone to sign this petition with any name other than his own, or knowingly to sign his name more than once for the measure, or to sign such petition when he is not a legal voter of the Chickasaw Nation, residing within the legislative district shown*

below. It is unlawful for anyone to sign this petition if he is not a registered resident voter of the geographical area of the Chickasaw Nation and of the legislative district shown below. Immediately below that shall be centered a solid bold black line, no less than two points in width and six inches in length, which shall separate that portion of the petition from the next section. Immediately below the black line shall be the word, in bold print in upper case letters no smaller than the word, "WARNING" which first appears and is referenced above, *PETITION*, followed by this language, also in bold print no less than 14 points in size: *TO THE TRIBAL COURT OF THE CHICKASAW NATION: We, the undersigned citizens and legal resident voters of the Chickasaw Nation, of the _____ Legislative District, respectfully submit the following petition seeking the impeachment of the elected official named below, for the approval or rejection of the Court, and each for himself says: I have personally signed this petition; I am a legal resident voter in the Chickasaw Nation and of the legislative district written above; my residence and post office are correctly written after my name, with the blank line containing the name of the legislative district in which the petition is being circulated. Immediately below that shall be placed a solid bold black line, no less than two points in width and six inches in length, which shall separate that portion of the petition from the next section. Immediately below the black line shall be the words, in bold print no less than 18 points in size: *Petition for the Impeachment of _____* with the name of the official whose impeachment is being sought by the petition being inserted in the blank line in type no less than 18 points in size. Immediately below that shall be the following, in bold print no less than 14 points in size: *Seeking the impeachment of the above-named elected official of the Chickasaw Nation for the following charge(s):* followed by a detailed*

description of the charges for which the impeachment of the elected official is being sought, including supporting allegations which cite the article(s) and section(s) of the Constitution which are alleged to have been violated.

(2) The front of the second sheet of the petition shall bear, in bold print in upper case letters no less than 18 points in size, the following wording: *This is a petition seeking the impeachment of _____* with the name of the elected official for whom impeachment is being sought being inserted in the blank line in bold print no less than 18 points in size. Below that shall be drawn a box, in lines of no less than 2 points in width, with headings centered over each of four divisions made within that box. Each heading shall be separated with a solid black line no less than 2 points in size, running from the top outermost border of the box to the bottom outermost border of the box. Such headings shall be in bold print in upper case letters no less than 12 points in size. The four headings shall be: *Name; Telephone Number; Residence (Rural Route or Street Address); Post Office - City or Town, and Legislative District.* There shall be inside the large box, spaces for 20 signatures, with each line numbered from 1 to 20, and separated by a solid black line no less than two points in width and in length sufficient to extend from one side of the outermost border of the box to the other side of the outermost border of the box. Beneath the box for signatures shall appear the following legend, in bold print no less than 12 points in size: *INSTRUCTIONS TO CIRCULATOR: Read the affidavit on page 3 and observe its requirements. Names shall and must be signed the same way the voter is registered; husband may not sign wife's name (and vice versa); circulators must witness all signatures; signatures only shall be placed on page 2, not on page 3. When all signatures have been obtained, type or print names in affidavit form*

provided on page 3, and sign your name and list your address (resident or post office address; not business office building) before a notary public. Have notary affix seal and signature; all signers must list residence address (do not permit ditto " marks). Use street addresses; strikeouts and markthroughs must be initialed by the voter making the change; no more than 20 signatures to a petition. Do not leave petition unattended. No person under the age of 18 years may sign the petition. Immediately below that shall appear the numeral 2, centered at the bottom of the page.

(3) The back of the second sheet of the petition shall bear, centered in bold type no less than 14 points in size, the word **AFFIDAVIT**. Centered beneath that word shall be a solid black line, no less than 2 points in width and no less than six inches in length. Below that black line shall be the following: I, _____, being first duly sworn, say: That I am a qualified elector of the _____ Legislative District of the Chickasaw Nation and that (here shall be legibly or typewritten the names of the signers of the sheet), followed by 20 lines, each numbered from one through 20. Below the last line shall appear: signed this sheet of the foregoing petition, and each of them signed his/her name thereto in my presence; I believe that each has stated his/her name, post office address and residence correctly, and that each signer is a legal voter of the Chickasaw Nation and of the legislative district indicated above. Beneath that shall be three lines no less than two inches in length, running horizontally on the page, with the words *Petition Circulator's Name* appearing beneath the first line, the words *Rural Route or Street Name* appearing beneath the second line, and the word *City or Town* appearing beneath the third line. Beneath that shall appear the standard information for notarization of the form, including the words *Subscribed and sworn to before me this _____ day of _____, 19____.*;

followed by an appropriate signature line for the notary, a line for the notary's address, and the date of the notary's expiration of commission. Centered below that shall be the numeral 3.

SEC 6. (a) A registered resident voter of the Chickasaw Nation may circulate a petition for the impeachment of an elected official; provided:

(1) that the circulator may only circulate his petition within the geographical area of the legislative district within which the circulator is a registered voter;

(2) the circulator must witness every signature affixed to his petition;

(3) the circulator must ensure that every person who signs his petition is a registered resident voter of the circulator's legislative district;

(4) any changes made to a signer's name, address or other information are made solely by the signer and initialed by him;

(5) each signer's name is printed or typewritten on the appropriate line on page 3 of the petition form;

(6) each signer signs the petition exactly the way in which he is registered to vote, and indicates the address at which he was most recently registered to vote;

(7) the circulator must sign the affidavit form on page 3 of the petition form and have it notarized by a legal, commissioned notary public in and for the state of Oklahoma; and

(8) prior to circulating a petition, the citizen has met with the Judicial Department and the judges have determined that such petition as provided to it by the citizen complies with the constitutional and lawful requirements and that the charge(s) for which impeachment is sought by the petition are clear, concise and legitimate within the cause for impeachment

as contained in Article XVI, Section 1 of the Constitution, and within the context of offenses as defined in this Act at Section 9. Once he has filed notice with the tribal court that he plans to circulate a petition for the impeachment of an elected official, and once that petition has been approved by the court prior to its circulation, a period of 90 calendar days shall be allowed for the circulator(s) to complete circulation of the petition and to file it with the tribal court, in accordance with the provisions of this Act. Additional requirements are included in Section 10 of this Act.

(b) A circulator may cause to be completed as many petition forms as he can, so long as those forms comply with all the provisions of this Act.

SEC. 7. (a) Once all petition forms have been completed to the satisfaction of the circulator(s) of the petition, they shall file said petition with the Tribal Court of the Chickasaw Nation. The court clerk shall count the petition forms and shall issue a certificate of receipt, showing the number of petition forms which were filed with the court, and the date and time of the filing of the petition.

SEC. 8. (a) Upon receipt of the petition, the judges of the tribal court shall set a meeting date, place and time to review the petition.

(b) At the appointed date, time and place for the review of the petition, the judges shall:

(1) Verify that the petition submitted is the exact same petition as was approved by the Court prior to its circulation;

(2) once the charge(s) for which impeachment is/are sought has/have been found to be legitimate in accordance with Sec. 6.(8) a, the judges shall then tabulate the number of signatures obtained for the impeachment petition, eliminating from such count all signatures or names which appear

more than one time on the petition forms;

(3) each legislative district must have a number of signatories to the petition forms equal to no less than 25% of the registered voters for that legislative district as of the date of the petition's filing. Should the petition seek the impeachment of a legislator, then only the number of voters registered to vote and resident in that district shall be used for computation; should the petition seek the impeachment of an elected official who serves in the Executive or Judicial departments, then only the number of voters registered to vote and resident in each of the four legislative districts, on a district-by-district basis, shall be used for computation, so that no less than 25% of the resident registered voters in each and every district shall be required for the number of signatories to be valid;

(4) once the judges have determined that sufficient numbers of resident registered voters have signed the petition forms, they shall provide the petition forms to the Chickasaw Nation Election Commission, which shall then verify each and every signature, and each and every address of each and every signatory to the petition forms. The same method for determining validity of signatures for tribal elections shall be utilized to verify signatures of petitions. The election commission shall have 15 working days in which to perform this task. Once this task is completed, the election commission shall provide the court with the number of signatures verified as correct and legitimate; the number of signatures which were determined to be invalid; the number of registered resident voters in each of the legislative districts for which petition forms were submitted to them; and the number of valid signatures certified as such by the election commission for each legislative district for which petition forms were submitted to them;

(5) when the election commission has provided to the court the information contained in (4) above, the court must then determine if the petition forms contain the required number/percentage of resident registered voters for each legislative district for which petition forms have been submitted to the court. Should there be a number equal to no less than 25% of the resident registered voters for each and every legislative district for which petition forms were submitted to the court, then the court shall declare the petition seeking impeachment of the affected elected official to be valid.

SEC. 9. (a) The court shall determine if impeachable offenses have been alleged. Charges which shall constitute legitimate claims and findings for filing of formal impeachment charges against an elected official of the Chickasaw Nation shall be charges which allege:

(1) Willful neglect of duty, which shall mean that an elected official has purposefully and determinedly not performed the job to which he was elected, including any of those duties of his office as contained in appropriate provisions of the Constitution, and those duties which might be prescribed by tribal law, by federal law, or if appropriately and lawfully applied, by state law. In order to show willful neglect of duty, it shall be required that the elected official, on more than one occasion after having had his failure to perform called to his attention, shall have repeated the same action with wanton disregard;

(2) corruption in office, which shall mean that an elected official has used the status or power of his office to obtain benefits of a material nature or otherwise, for himself or for anyone else, so long as those benefits are contrary to what could have been gained by the elected official or for the other person or persons had the elected official not been elected to that office;

(3) habitual drunkenness, which shall mean the abuse of drugs, the abuse of prescribed medicines upon proof of such by a licensed medical practitioner, and/or the abuse of alcoholic beverages or other intoxicants, with the term abuse defined by the normally accepted interpretations of such by the normal general public, and which interferes with the elected official's performance of his official duties;

(4) incompetency, which shall mean that the elected official is incapable of performing the job which he was elected to do due to physical, intellectual or moral prohibitions; and

(5) moral turpitude, which shall mean actions in private or in public which shall be contrary to generally accepted and customary actions by normal people, or actions which gravely violate moral sentiment or accepted moral standards of the general community so as to cause revulsion or repulsion among the general community, or morally culpable offenses held to be present in some criminal offenses as distinguished from others.

SEC. 10. (a) In order that a petition may be found to be legitimate, the court shall determine the validity of the charges for impeachment, in accordance with the provisions of Article XVI, Section 1, (b) of the Constitution, and according to the stipulations of this Act.

(b) Once a petition seeking the impeachment of an elected official has been filed with the court and certified as containing the appropriate number of signatures by the Chickasaw Nation Election Commission, the Judicial Department shall schedule a special hearing with the circulator(s), at which all three judges shall be in attendance. At that meeting, the circulators shall:

(1) Provide evidence to substantiate their charges in accordance with requirements which shall be established by the court, including all proof or evidence to substantiate the claims of the

circulator(s) regarding the actions of that elected official.

(c) Upon conclusion of that special hearing, the three judges shall vote to determine the validity of the charges. Upon an affirmative vote in support of the petition by two of the three judges, formal impeachment charges shall be drawn up by the court and submitted to the chairperson of the legislature, unless it shall be that official against whom charges shall be pressed, in which case the court shall present the articles of impeachment to the secretary of the legislature. The articles of impeachment shall be presented in the format of a petition as utilized by the court, and shall include a copy of the petition as filed and all signatures affixed thereto, a certified statement from the Chickasaw Nation Election Commission providing the names of those citizens whose signatures were found by the commission to be valid, the date and time that the petition was received by the court, and the date and time that the petition was determined to be valid by the court, along with the court's findings regarding the validity of the impeachment charges as contained in the petition. The articles of impeachment shall state the offense in office with which the elected official is being charged and, should there be more than one such charge, each shall be stated separately.

SEC. 11. Upon receipt of formal impeachment charges from the court, the chairperson or, in case of circumstances identified in Sec. 10(c), the secretary of the legislature shall notify by the most expedient means the remaining members of the legislature, providing them information relevant to the filing of the articles of impeachment by the court. That officer of the legislature shall then place the articles of impeachment on the agenda for the next regular session of the legislature.

SEC. 12. (a) At the next regular session of the legislature, when appropriate as determined by the order of the agenda for that session, the

legislature shall consider a resolution regarding the articles of impeachment. Such resolution shall:

(1) Suspend from the exercise of duties of his office, with all pay and benefits, the elected official against whom articles of impeachment have been preferred, with that suspension continuing in effect immediately upon concurrence of the resolution by the governor or, should the governor be the elected official against whom the charges are preferred, immediately upon concurrence of the lieutenant governor, until such time as the impeachment charges are dispensed with;

(2) appoint a prosecutor to present the charges for impeachment before the legislature, with the prosecutor meeting the following requirements:

(A) He shall be a licensed, practicing attorney, licensed to practice law in the state of Oklahoma and admitted before the bar of the state;

(B) he shall be a citizen of the Chickasaw Nation;

(C) he shall be an active, registered voter of the Chickasaw Nation;

(D) he shall serve for the fee set by the legislature which shall be paid to him from tribal funds, non-trust, with said fee being set by the same resolution which appoints him;

(3) establish witness fees to be paid to all witnesses appearing before the legislature during the course of the hearing, with said fees being in amounts allowed in a federal court of law and being paid from non-trust tribal funds; and

(4) set the date, time and place for the hearing.

SEC. 13. (a) The legislature shall, for purposes of conducting a hearing for impeachment, have power and authority to issue subpoenas, upon request

by the prosecutor or by the defendant's counsel. Subpoenas must be substantially in the following form:

IN THE NAME OF THE CHICKASAW NATION

The Chickasaw Nation)
)
vs.) Impeachment Hearing
)
(elected official))

S U B P E O N A

To: (stating name and address of person, etc. being subpoenaed)

Greetings: You are commanded to appear before the Chickasaw Tribal Legislature on the (stating day and hour), and remain in attendance on and call of said from day to day and term to term until lawfully discharged, as a witness in an impeachment hearing prosecuted by the Chickasaw Nation against (stating name of elected official).

Hereof fail not, under penalty of law.

IN WITNESS WHEREOF, I have hereunto set my hand this _____
day of _____, 19 ____.

(Name and title of legislature officer)

Said subpoenas shall be signed by the secretary of the legislature or, should the secretary of the legislature be the elected official against whom charges have been preferred, by the chairperson of the legislature. Subpoenas shall be issued immediately upon request. A subpoena may be served at any place within the Chickasaw Nation. It may also be served at any place without the Chickasaw Nation that is within 100 miles of the place of the hearing specified in the subpoena. The 100 mile limit applies

to a party as well as to an ordinary witness. Such distance is to be measured by the ordinary, usual and shortest route which can be taken by automobile on state highways or roads.

(b) A subpoena for the attendance of a witness shall state the name of the Chickasaw Tribal Legislature and the title of the action, and it shall command each person to whom it is directed to attend and to give testimony at a time and place specified in the subpoena. There is no limit on the number of witnesses who may be subpoenaed in an impeachment hearing. Subpoenas should contain the name(s) of those to whom the subpoenas will be issued; however, issuing a subpoena signed and sealed but otherwise blank, to the party requesting it, who is to fill it before service, is also allowed.

(c) A subpoena duces tecum may be issued for the production of documents. If a subpoena duces tecum is served on one who has custody of records which belong to another person, formal notice shall be served on the owner of the records before production can be required by the legislature. A subpoena duces tecum shall command the person named thereon to produce and permit inspection and copying of designated books or other tangible things. Within ten days after service of the subpoena, or before the time specified for compliance if that time is less than ten days after service, the person subpoenaed may serve on the party requesting the subpoena written objection to inspection or copying of any or all of the designated materials. If there is objection, the party serving the subpoena is not entitled to inspect and copy the materials unless the legislature, on motion made at any time before or during the taking of the deposition, orders that inspection and copying be permitted. The legislature on motion made promptly may quash or modify the subpoena if compliance would be unreasonable or oppressive. The legislature may direct

that books, papers, documents or objects designated in the subpoena be produced before the legislature at a time prior to the hearing or prior to the time when they are to be offered in evidence and may upon their production permit the books, paper, documents or objects or portions thereof to be inspected by the parties and their legal counsel.

(d) The form for both a subpoena and a subpoena duces tecum shall be the same, except that a subpoena duces tecum shall have the addition of language commanding the person to whom it is directed to produce the books, papers, documents or tangible things designated in the subpoena. A subpoena duces tecum shall be issued upon request and may be had signed and sealed but otherwise blank, to be filled in by the party requesting it before service. The subpoena shall designate with reasonable particularity the documents and things that are to be produced. Blanket subpoenas should be avoided; however, if a party does not know exactly what documents he wishes produced, he may require the production of all documents relating to a certain specified matter or issue.

(e) A subpoena shall not be necessary for the taking of depositions. Service of the notice of taking of the deposition is enough to require these persons to appear and to expose the party to sanctions if they fail to do so. Such sanctions shall be determined by the legislature. A notice is sufficient to cause the party to appear and to bring documents or things to the taking of the deposition. These rules do not apply to an involuntary party who has not been served with process and who is not within the jurisdiction of the Chickasaw Nation. He cannot be compelled to respond to a notice to take his deposition but must be subpoenaed. These rules also do not apply to a witness whose deposition is sought who is not a party to the case. A subpoena is required to compel the attendance of the nonparty witness. Should a deposition be sought from a corporation, partnership,

association or governmental agency, the notice of the deposition shall describe the matters on which examination is required and leave it to the organization to designate persons to testify for it. If the corporation is a party, the notice alone is sufficient to require it to comply. If it is not a party, a subpoena must also be served on the corporation-- or other organization-- and the subpoena must advise the organization of its duty to make this designation.

(f) A resident of the Chickasaw Nation may be required to attend only in the Oklahoma county in which he resides or is employed or transacts his business in person or at such other convenient place as is fixed by order of the legislature. A nonresident of the Chickasaw Nation may be required to attend only in the Oklahoma county in which he is served with a subpoena or within 40 miles from the place of service or at such other convenient place as is fixed by order of the legislature. Limits are not controlling on the taking of depositions for whom a subpoena is not necessary.

(g) Proof of service of a notice to take a deposition constitutes sufficient authorization for the issuance of a subpoena for each person named or described in the notice. If a subpoena duces tecum is sought, a designation of the materials to be produced as set forth in the subpoena must be attached to or included in the notice.

(h) In all cases of subpoenas or notices for the taking of depositions, each witness shall be paid by the legislature at the rate of not less than \$20 per day, plus expenses.

(i) A subpoena may be served by anyone who is not a party to the hearing and who is not less than 18 years of age. Service of a subpoena shall be made by delivering a copy thereof to the person named and by tendering to him the fee for one day's attendance and the mileage allowed by tribal practice. A subpoena requiring the attendance of a witness at the hearing

may be served at any place within the United States. Any person who serves a subpoena shall make a return certification to the legislature so as to indicate service of that subpoena. The person serving the subpoena shall state on the copy that is left with the person served the date that service is made. Service of a subpoena shall be made upon an individual other than an infant who is less than fifteen years of age or an incompetent person, by delivering a copy of the summons to him personally or by leaving copies thereof at his dwelling house or usual place of abode with some person then residing therein who is fifteen years of age or older or by delivering a copy of the summons to an agent authorized by appointment or by law to receive process of service. Service of a subpoena shall be made upon an infant who is less than fifteen years of age by serving the summons upon him personally and upon either of his parents or his guardian, or if they cannot be found, then upon the person having the care or control of the infant or with whom he lives or, in the case of an incompetent person, by serving upon him personally and upon his guardian. Service of a subpoena shall be made upon a corporation, partnership or other unincorporated association by delivering the subpoena to an officer, a managing or general agent, or to any other agent authorized by appointment or by law to receive service of process. Service of a subpoena shall be made upon the United States or an officer or agency thereof in the manner specified by Federal Rule of Civil Procedure 4. Service of a subpoena may also be accomplished by mail by mailing a copy of the subpoena by certified mail, return receipt requested and delivery restricted to the addressee. When there is more than one person being subpoenaed, the subpoena shall be mailed in a separate envelope to each person.

(j) Failure by any person without adequate excuse to obey a subpoena served upon him may be deemed to be in contempt. Contempt cases shall be

dealt with according to the directions of the legislature, depending upon the jurisdiction that the legislature may exercise over such persons.

(k) Every witness summoned in an impeachment hearing shall take notice of the postponements and continuances and when once summoned in such action shall, without further notice or summons, be in attendance upon such action, as such witness, until discharged by the legislature.

SEC. 14. For all purposes of the conduction of impeachment hearings or for any business relating to impeachment once formal impeachment charges have been brought before it, the legislature shall meet and shall be attended by no fewer than ten of the duly elected members of the legislature. Once the legislature has taken actions in Sec. 12, a timetable shall be devised by the legislature for the conduction of the impeachment hearing. Such timetable shall include the date, time and place for the hearing. Also at this assembly, each member of the legislature shall receive an exact copy of the formal impeachment charges as presented by the court. No other material shall be included, discussed, distributed, recommended or considered by the legislature at this assembly, whether or not such material is relevant to the impeachment hearing and charges.

SEC. 15. (a) The formal hearing for the impeachment charges shall convene at the appointed date, place and time, and shall be presided over by the chairperson of the legislature or, in the case as cited in Sec. 10(c) of this Act by the secretary of the legislature. The hearing shall be conducted in the following manner:

(1) The chairperson or, if the chairperson is the elected official against whom impeachment charges have been pressed, the secretary shall be the presiding officer of the impeachment hearing;

(2) the presiding officer shall convene the hearing, beginning with a formal reading of the articles of impeachment;

(3) after each article is read and each charge is presented, the presiding officer shall ask the accused how he pleads to the charge as presented;

(4) once the articles of impeachment have been presented in full and the accused has entered his plea(s), the prosecutor shall present his opening remarks concerning the articles of impeachment and all supporting evidence;

(5) the defense shall present his opening remarks concerning the articles of impeachment and all supporting evidence;

(6) the prosecutor shall call and question his first witness;

(7) the defense shall cross examine the witness;

(8) the prosecutor shall have the opportunity for redirect examination;

(9) this procedure shall continue until the prosecutor shall have called and questioned all his witnesses, and the defense shall have had the opportunity to cross examine each witness for the prosecution, and the prosecutor shall have had the opportunity for redirect examination of each witness, Once this is complete, the prosecution shall rest its case;

(10) the defense shall then call and question its first witness;

(11) the prosecutor shall cross examine the witness;

(12) this procedure shall continue until the defense shall have called and questioned all its witnesses, and the prosecutor shall have had the opportunity to cross examine each witness for the defense, and the defense shall have had the opportunity for redirect examination of each witness. The defense shall then rest its case;

(13) the prosecutor shall make his closing statement;

(14) The defense shall make its closing statement.

(b) Once both the prosecution and the defense have made their closing

statements, the legislature shall withdraw to a private room for deliberation. Having made its decision on the charges included in the articles of impeachment, the legislature shall re-assemble to deliver, by roll call vote, its final verdict on the charges included in the articles of impeachment.

(c) Impeachment on any of the charges included in the articles of impeachment shall require ten affirmative votes. Should all charges fail to garner ten affirmative votes for impeachment, the suspension from the performance of official duties on the part of the elected official against whom the articles of impeachment were preferred shall cease immediately upon the reading of the verdict.

(d) Should there be ten or more affirmative votes for impeachment on any of the charges included in the articles of impeachment, the suspension from the exercise of official duties shall become permanent immediately upon the reading of the verdict and the official shall be removed from office and the office declared vacant. The elected official who is impeached shall lose all benefits, powers and authorities immediately upon the reading of the verdict.

SEC. 16. Any elected official impeached pursuant to the provisions of this Act shall be forever ineligible for appointment to any position within the government of the Chickasaw Nation. Any elected official impeached pursuant to the provisions of this Act shall be forever ineligible to seek any elective office within the government of the Chickasaw Nation.

SEC. 17. During the hearing to be conducted pursuant to the provisions of this Act, the legislature, while sitting as a court to hear the charges shall entertain the following motions on the part of the defense or the prosecution, and shall render decisions on those motions at the time the motions are made, or within a reasonable time for motions which are filed:

(1) Motion in bar, which shall be a motion, if allowed, which will absolutely bar the action;

(2) motion in limine, which shall be a written motion which is made before or after the beginning of the hearing for a protective order against prejudicial questions and statements, so as to avoid injection into the hearing of matters which are irrelevant, inadmissible and prejudicial and the granting of such a motion is not a ruling on evidence and, where properly drawn, the granting of the motion cannot be error;

(3) motion to dismiss, which shall be interposed before the hearing to attack the action on the basis of insufficiency of the pleading, of process, of venue or of joinder;

(4) motion to strike, which may be made by either the prosecution or the defense, which shall allow the legislature to order stricken from any pleading any insufficient defense, or any redundant, immaterial, impertinent or scandalous matter;

(5) and such other motions as may be permissible in a court of law in actions involving criminal offenses.

SEC. 18. All portions of the hearing shall be recorded by the recording secretary of the legislature and shall be transcribed verbatim.

Executed in regular session of the Chickasaw Tribal Legislature meeting at Ada, Oklahoma, on October 15, 1993, by a vote of 12 ayes, 0 nays and 0 abstentions.

Lisa Shephard
Chairperson Protempore
Chickasaw Tribal Legislature

Robert Walton
Secretary Protempore
Chickasaw Tribal Legislature

Concur: Bill Anoatubby
Bill Anoatubby, Governor
The Chickasaw Nation

Date: OCT 18 1993

WARNING

It is a felony for anyone to sign this petition with any name other than his own, or knowingly to sign his name more than once for the measure, or to sign such petition when he is not a legal voter of the Chickasaw Nation, residing within the legislative district shown below. It is unlawful for anyone to sign this petition if he is not a registered resident voter of the geographical area of the Chickasaw Nation and of the legislative district shown below.

PETITION

TO THE TRIBAL COURT OF THE CHICKASAW NATION:

We, the undersigned citizens and legal resident voters of the Chickasaw Nation, of the _____ Legislative District, respectfully submit the following petition seeking the impeachment of the elected official named below, for the approval or rejection of the Court, and each for himself says: I have personally signed this petition; I am a legal resident voter in the Chickasaw Nation and of the legislative district written above; my residence and post office are correctly written after my name.

Petition for the Impeachment of _____

Seeking the impeachment of the above-named elected official of the Chickasaw Nation for the following charge(s):

This is a petition seeking the impeachment of _____

NAME	TELEPHONE NUMBER	RESIDENCE (RURAL ROUTE OR STREET ADDRESS)	POST OFFICE - CITY OR TOWN, AND LEGISLATIVE DISTRICT
1.			
2.			
3.			
4.			
5.			
6.			
7.			
8.			
9.			
10.			
11.			
12.			
13.			
14.			
15.			
16.			
17.			
18.			
19.			
20.			

INSTRUCTIONS TO CIRCULATOR: Read the affidavit on page 3 and observe its requirements. Names shall and must be signed the same way the voter is registered; husband may not sign wife's name (and vice versa); circulators must witness all signatures; signatures only shall be placed on page 2, not on page 3. When all signatures have been obtained, type or print names in affidavit form provided on page 3, and sign your name and list your address (resident or post office address; not business office building) before a notary public. Have notary affix seal and signature; all signers must list residence address (do not permit ditto " marks). Use street addresses; strikeouts and markthroughs must be initialed by the voter making the change; no more than 20 signatures to a petition. Do not leave petition unattended. No person under the age of 18 years may sign the petition.

AFFIDAVIT

I, _____, being first duly sworn, say: That I am
a qualified elector of the _____ Legislative District of the
Chickasaw Nation and that

1. _____

11. _____

2. _____

12. _____

3. _____

13. _____

4. _____

14. _____

5. _____

15. _____

6. _____

16. _____

7. _____

17. _____

8. _____

18. _____

9. _____

19. _____

10. _____

20. _____

signed this sheet of the foregoing petition, and each of them signed his/her name thereto in my presence;
I believe that each has stated his/her name, post office address and residence correctly, and that each
signer is a legal voter of the Chickasaw Nation and of the legislative district indicated above.

Petition Circulator's Name

Rural Route or Street Name

City or Town

Subscribed and sworn to before me this _____ day of _____,
19____.

Notary Public

Notary's Address

My Commission Expires on _____, 19____.

(SEAL)